

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Guinn	Team: Squad #14	CCRB Case #: 202005487	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/07/2020 3:38 PM, Sunday, 06/07/2020 4:56 PM	Location of Incident: Gettysburg Street and Fairbury Avenue; § 87(2)(b)	Precinct: 105	18 Mo. SOL 12/7/2021	EO SOL 5/4/2022	
Date/Time CV Reported Thu, 08/06/2020 3:59 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 08/06/2020 3:59 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Aylward	09539	938008	105 PCT
2. LT Anthony Gulotta	00000	919140	105 PCT
3. SGT Vlad Kogan	01999	938783	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Danielle Renna	14702	962670	105 PCT
2. POM Daniel Brandon	21354	959507	105 PCT
3. POM Yodaryl Moronta	01268	949368	105 PCT
4. POM Steven Campisi	31825	936289	105 PCT
5. SGT Adriano Deleon	02580	940069	105 PCT
6. POF Sara Gaertner	26519	965116	105 PCT
7. POM Matthew Knudsen	21251	964097	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Christophe Aylward	Abuse: At Gettysburg Street and Fairbury Avenue in Queens, Police Officer Christopher Aylward threatened to arrest § 87(2)(b)	§ 87(2)(b)
B.POM Christophe Aylward	Force: At Gettysburg Street and Fairbury Avenue in Queens, Police Officer Christopher Aylward used physical force against § 87(2)(b)	§ 87(2)(b)
C.LT Anthony Gulotta	Abuse: At Gettysburg Street and Fairbury Avenue in Queens, Lieutenant Anthony Gulotta forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
D.POM Christophe Aylward	Abuse: At § 87(2)(b) in Queens, Police Officer Christopher Aylward refused to provide his name to § 87(2)(b)	§ 87(2)(b)
E.POM Christophe Aylward	Abuse: At § 87(2)(b) in Queens, Police Officer Christopher Aylward refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]

Case Summary

On August 6, 2020, § 87(2)(b) filed the following complaint with the CCRB via the online website.

On June 7, 2020, at approximately 3:00 p.m., Police Officer Danielle Renna, Police Officer Christopher Aylward, Lieutenant Anthony Gulotta, and Sergeant Vlad Kogan, all of the 105th Precinct, responded to the vicinity of Gettysburg Street and Fairbury Avenue in Queens for a 911 call placed by § 87(2)(b)'s neighbor. PO Renna and PO Aylward spoke with § 87(2)(b) and PO Aylward allegedly told § 87(2)(b) “if you don’t go [to the hospital] voluntarily, I’m going to arrest you” (**Allegation A: Abuse of Authority, § 87(2)(g)**). PO Aylward allegedly pushed § 87(2)(b) by her right shoulder onto the stretcher (**Allegation B: Force, unsubstantiated**). Lieutenant Gulotta forcibly removed § 87(2)(b) to § 87(2)(b) (**Allegation C: Abuse of Authority, § 87(2)(g)**).

At § 87(2)(b) PO Aylward allegedly failed to provide his name and shield number to § 87(2)(b) (**Allegations D and E: Abuse of Authority, § 87(2)(g)**).

§ 87(4-b) § 87(2)(g)

No arrests or summonses resulted from this incident.

§ 87(4-b) § 87(2)(g)

BWC footage was obtained for Police Officer Sara Gaertner of the 105th Precinct, the relevant aspects of which will be discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: At Gettysburg Street and Fairbury Avenue in Queens, Police Officer Christopher Aylward threatened to arrest § 87(2)(b)

Allegation (B) Force: At Gettysburg Street and Fairbury Avenue in Queens, Police Officer Christopher Aylward used physical force against § 87(2)(b)

The investigation established the following facts:

At the time of the incident, § 87(2)(b)'s neighbor, § 87(2)(b) called 911 and reported that § 87(2)(b) came near her property and threatened to kill her while holding an unknown object in her hand. Upon arrival, PO Renna and PO Aylward, the first officers to arrive on scene, spoke with § 87(2)(b) who reiterated that § 87(2)(b) had harassed and threatened her. After speaking with § 87(2)(b) PO Renna and PO Aylward located § 87(2)(b) walking down the street near Gettysburg Street and Fairbury Avenue. PO Renna and PO Aylward spoke with § 87(2)(b) who was upset and said that her neighbors were harassing and threatening her. EMS workers and other units from the 105th Precinct, including Lieutenant Gulotta and Sgt. Kogan, arrived on scene, and § 87(2)(b) was transported in an ambulance to § 87(2)(b).

§ 87(2)(b) testified that when she was on the corner of Gettysburg Street and Fairbury Avenue, approximately four to five marked police vehicles arrived and approximately eight to ten officers exited the vehicles. Two of the officers, PO Aylward and PO Renna, approached § 87(2)(b) as she was about to cross the intersection. PO Aylward spoke to § 87(2)(b) and told her that some allegations were reported against her, but he did not provide her with any further details. § 87(2)(b) explained to PO Aylward that her neighbors have a history of stalking and harassing her, and she reported her neighbors to the NYPD. § 87(2)(b) told PO Aylward that she did not have a mental illness and she did not have a history of substance abuse. An ambulance then arrived, and two EMS workers exited it with a stretcher. PO Aylward told § 87(2)(b) “If you don’t go voluntarily [to the hospital], I’m going to arrest you.” § 87(2)(b) replied, “I’m not resisting, but

I'm not going voluntarily." To avoid being "manhandled," § 87(2)(b) moved towards the stretcher, but she did not sit on it because she did not consent to go to the hospital. PO Aylward placed his hand on § 87(2)(b)'s right shoulder, and he pushed down on it with a "tremendous" amount of pressure, which caused § 87(2)(b) to sit on the stretcher (BR 01).

PO Gaertner's BWC is brief, as it is only 51 seconds, and it begins at the point where § 87(2)(b) is already on the stretcher and thus slightly after this aspect of the incident, surrounded by approximately nine officers, as she is being restrained to the stretcher by EMS workers. At no point does the video capture PO Aylward push § 87(2)(b) by her right shoulder onto the stretcher, nor does it show PO Aylward touch § 87(2)(b) at all. Furthermore, at no point does the video capture PO Aylward say anything along the lines of "if you don't go voluntarily, I'm going to arrest you" nor does it show PO Aylward make any threats of arrest towards § 87(2)(b) (BR 02-03).

PO Aylward testified that when he and PO Renna approached § 87(2)(b) on the corner of Gettysburg Street and Fairbury Avenue, he asked her if anything was going on because her neighbors called and said that they had an altercation with her. § 87(2)(b) did not know what PO Aylward was talking about, and she told him that her neighbors were constantly harassing and threatening her. While PO Aylward was talking with § 87(2)(b), § 87(2)(b)'s voice was raised, she moved her hands around, and she appeared frustrated and irrational, so either PO Renna or PO Aylward called an ambulance. PO Aylward testified that he attempted to get § 87(2)(b) in the ambulance by telling her that based on his history of responding to complaints about her, she had a history of mental illness and posed a threat to her neighbors. § 87(2)(b) stated that she did not want to go to the hospital, and she was being harassed. PO Aylward did not recall telling § 87(2)(b) that "if you don't go voluntarily [to the hospital], I'm going to arrest you." After about 15 minutes of talking and persuading § 87(2)(b) to go to the hospital, § 87(2)(b) decided to go to the hospital. § 87(2)(b) got on the stretcher on her own, though the officers may have assisted her on the stretcher by extending their hands. PO Aylward denied placing his hand on § 87(2)(b)'s shoulder with a "tremendous" amount of pressure, causing her to sit on the stretcher. PO Aylward denied using any force to get § 87(2)(b) on the stretcher (BR 04).

PO Renna testified that when EMS arrived, § 87(2)(b) did not want to go to the hospital; however, she eventually decided to go. PO Renna never heard PO Aylward tell § 87(2)(b) "if you don't go voluntarily [to the hospital], I'm going to arrest you." PO Renna testified that there was no conversation about arresting § 87(2)(b) because there was nothing that she could have been arrested for. Furthermore, PO Renna testified that no one touched § 87(2)(b) as she voluntarily got on the stretcher (BR 05).

Sgt. Kogan and Lieutenant Gulotta provided consistent testimonies that when they arrived on scene § 87(2)(b) was already on the stretcher, and thus, their arrival was after this aspect of the incident (BR 06-07).

The investigation received negative results for Threat Resistance and Injury Worksheet reports (BR 08).

§ 87(2)(g)

§ 87(2)(b)

Allegation (C) Abuse of Authority: At Gettysburg Street and Fairbury Avenue in Queens, Lieutenant Anthony Gulotta forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified that officers removed her via ambulance to § 87(2)(b) where she received a psychiatric evaluation (BR 01).

§ 87(2)(b) refused to provide the investigation a signed HIPPA form in order for the investigation to obtain her medical records from the date of the incident.

As discussed above, officers responded to the location after a 911 call was placed by § 87(2)(b)'s neighbor, § 87(2)(b). At the 00:39 mark of the 911 call audio, § 87(2)(b) tells the 911

operator that § 87(2)(b) “came across the street on my side, my property, in a threatening manner and started pointing at me saying, I’m going to kill you; I’m going to kill your ass.” The 911 operator asks § 87(2)(b) when the incident occurred, and § 87(2)(b) says, “just now and I already have complaints against her.” At the 1:02 mark of the 911 call audio, § 87(2)(b) says, “here she comes again. I don’t know what she got; she got an object in her hand”, and at 1:15, the 911 operator says help is on the way (BR 09-10).

PO Aylward testified that upon arrival, § 87(2)(b) did not have an object in her hand; however, based on his familiarity with § 87(2)(b) the nature of the 911 call, and the neighbors stating that § 87(2)(b) threatened to physically attack them, he and PO Renna, as well as the other officers on scene, determined that § 87(2)(b) needed to go to the hospital to be evaluated. PO Aylward reiterated that based on the above factors, the officers determined that § 87(2)(b) was an EDP, and the EMS workers agreed with the officers’ assessment (BR 04).

PO Renna testified that the original radio call was for a non-violent harassment case, which involved a verbal disagreement between neighbors. PO Renna testified that at the point she and PO Aylward approached § 87(2)(b) § 87(2)(b) did not have an object in her hand and PO Aylward proceeded to tell § 87(2)(b) that they were there to help her and wanted to hear her side of the story. § 87(2)(b) was upset, moved her arms, and yelled that they were harassing her. Then, § 87(2)(b) § 87(2)(b) called PO Aylward and PO Renna, “fucking pigs.” Because § 87(2)(b) screamed and flailed her arms, PO Renna believed that § 87(2)(b) was a threat to herself and others, and either she or PO Aylward called for an ambulance to have § 87(2)(b) psychologically evaluated. PO Renna testified that when the ambulance arrived on scene, EMS workers spoke with § 87(2)(b) and conducted an evaluation, and § 87(2)(b) was cooperative with EMS. After EMS spoke with § 87(2)(b) EMS told PO Renna and PO Aylward that § 87(2)(b) was an EDP and she needed to be taken to § 87(2)(b) for further evaluation. (BR 05).

Lieutenant Gulotta testified that he arrived on scene and observed § 87(2)(b) on the stretcher. Given that Lieutenant Gulotta was the highest-ranking officer on scene during § 87(2)(b) § 87(2)(b)’s hospital removal, this allegation has been pleaded to him (BR 07).

An AIDED report was created for this incident, which stated that § 87(2)(b) verbally threatened others. Additional details noted on the report further stated that § 87(2)(b) was continuously disputing with her neighbors, and when she was approached by officers to discuss the incident with her neighbors, § 87(2)(b) became very “agitated” (BR 11).

NYPD Patrol Guide Procedure 221-13 states when a uniformed member of the service reasonably believes that a person who is apparently mentally ill or emotionally disturbed, must be taken into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others (BR 12).

§ 87(2)(g)

Allegation (D) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Christopher Aylward refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Christopher Aylward refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified that PO Renna and PO Aylward escorted § 87(2)(b) inside of the hospital. While § 87(2)(b) was being escorted, she asked PO Aylward for his name and his shield number, but he allegedly ignored her. § 87(2)(b) asked PO Aylward for his information again, and PO Renna provided both her and PO Aylward’s names and shield numbers to § 87(2)(b) PO Aylward did not provide his name or shield number to § 87(2)(b) at any point (BR 01).

PO Aylward testified that when he was at the hospital with § 87(2)(b) he did not recall hearing § 87(2)(b) ask him for his name and shield number and he denied refusing to provide § 87(2)(b) his name and shield number (BR 04).

PO Renna testified that she did not recall escorting § 87(2)(b) to the hospital. However, at no point during the incident did PO Renna hear § 87(2)(b) ask PO Aylward for his name and shield number, nor did she hear PO Aylward refuse to provide his name and shield number to § 87(2)(b) (BR 05).

Sgt. Kogan and Lieutenant Gulotta consistently testified that they were not present at the hospital with § 87(2)(b) (BR 06-07).

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one CCRB complaint and has been named a victim in two allegations (BR 15):

- § 87(2)(b)

§ 87(2)(b)

- PO Alyward has been a member of service for 16 years and has been a subject in two CCRB complaints and seven allegations, of which one was substantiated:
 - 201701614 involved a substantiated allegation of physical force against PO Alyward. The Board recommended Formalized Training and the NYPD declined to prosecute.
 - § 87(2)(g)
- Sgt. Kogan has been a member of service for 16 years and has been a subject in three CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- Lieutenant Gulotta has been a member of service for 24 years and has been a subject in 11 CCRB complaints and 24 allegations, of which three were substantiated:
 - 201310051 involved a substantiated allegation of abuse-other against Lieutenant Gulotta. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - 201901695 involved substantiated allegations of physical force and discourtesy-word against Lieutenant Gulotta. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming damages to her cellphone, emotional damages, and violations of her civil rights seeking \$2,000,100.00 as redress (BR 16). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 14

Investigator	Alex Guinn Signature	Inv. Alex Guinn Print Title & Name	09/01/2021 Date
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Squad Leader:	Cassandra Fenkel Signature	IM Cassandra Fenkel Print Title & Name	09/01/2021 Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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